Court of Appeal — Forensic Assessment

Version 1.0.0 · 2026-10-23

Editors of the Great House Farm Legal Wiki

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Page 1555 of the Great House Farm Legal Wiki, carried over from the version last modified on 2026-10-21. The same page is published at research.bucklerfamily.estate, and this version is also a PDF in the wayback archive.

1 Release notes

1.1 This release (version 1.0.0)

- **2026-Oct-23** - Carried over to the docs library from Legal Wiki page 1555 (last modified 2026-10-21 19:40:43 UTC). The page text, dates and references are as on the wiki. Links to wiki pages lead to the same page on research.bucklerfamily.estate; images are links to their files on the wiki.

1.2 Older versions

None yet.

2 Record

This material now lives at https://fcg.bucklerfamily.estate/case/court-of-appeal-forensic-institutional-review**.**

Page ID: 1555 · **Title:** Court of Appeal — Forensic Assessment · **Evidence status:** Corrected 18 Oct 2026; evidence labels on the edited lines · **Version:** 0.1.2 · Editing Protocol

About this page type → Read the Docs

Chronology and catalogue links — assessed 10-10-2026: Use the Institutional Involvement Roadmap (1877–2026) for the date-ordered institution/people/evidence sequence. The reported 1988 Cadw-to-Minister spot-listing letter has its own catalogue placeholder at GHF-E152; the original has not been attached to that page as at 10-10-2026. A placeholder records an evidence gap; it does not establish the letter's contents or misconduct.

2.1 Forensic Assessment — Court of Appeal

Scope: the Court of Appeal's judicial function in *BP Properties Ltd v Buckler* [1987] EWCA Civ 2 [EV-0080]. This page does not allege judicial misconduct.

2.1.1 What the judgment actually did

The appeal concerned adverse possession and limitation for the farmhouse and garden. Dillon LJ held that Frederick and Mary were jointly in adverse possession from 2 February 1955, disagreeing with Hollis J's conclusion that Frederick lacked the necessary intention partly because he appeared willing to accept a tenancy [EV-0080]. The appeal was nevertheless dismissed because the 1962 possession order remained enforceable and the 1974 letters made Mary a licensee for limitation purposes, even though she had not expressly accepted them.

The judgment's wording about Mary having "conceived the notion" of ancestral title and not producing the documents is also part of the reasoning context: paragraph 12 returned to the argument that possession could be referred to a lawful title. The published reasons do not thereby establish whether the 1877 transaction actually vested Parcel A in the Williams family. Non-production in the litigation is not, by itself, proof the asserted historical claim was baseless.

2.1.2 Title extent and the amalgamation during the appeal

The published judgment states that BP had paper title and had been registered proprietor of "the whole" farm since November 1982 [EV-0080]. The current Wiki chronology records WA231076 and WA240304 as separate live titles after the 1986 High Court decision, followed by an amalgamation application on 2 February 1987 and the Court of Appeal judgment in July 1987 [PENDING: EV-0078]. That chronology needs to be tested against the original registers, plans and application: two live title numbers do not prove different proprietors or a defect, but the exact parcel extent and the timing of the merger are material.

The unresolved forensic question is whether the amalgamation or its land-extent implications were brought to the attention of the parties and Court, and whether the appeal bundle contained title material adequate to support the broad "whole farm" description. The record reviewed here does not yet establish that the judges knew of a discrepancy, that a relevant fact was concealed, or that the amalgamation affected the legal result.

2.1.3 1954 event, earlier limitation and source attribution

The family identifies a separate further attempt to make Frederick a tenant in 1954 as an unsuccessful effort to make Parcel-A occupation permissive; it is tracked at GHF-E182, with the original source pending. The accessible published appellate report checked on 15 October 2026 does not mention 1954. It reports a 10 October 1952 agents' letter saying they did not propose to proceed with letting Frederick, yet Dillon LJ nevertheless concluded that Frederick had a protected periodic agricultural tenancy. The 1954 event must remain separate from that judicial finding unless a different, identifiable record supports the attribution.

The legal question raised by the family is whether the relevant right to recover Parcel A had already become barred before the later tenancy proposal or possession proceedings. The twelve-year limitation period existed under the Real Property Limitation Act 1874; if the right of action accrued when occupation became adverse by about 1928, completion by about 1940 is a possible alternative limitation case. If accrual was only in 1940, twelve years would run to about 1952. Neither date follows from non-payment of rent alone. The tenancy's parcel scope, factual possession, intention, prior permission/acknowledgement and the true paper title must be established.

A proposal that failed in 1954 would not, simply by being made, revive a title already extinguished or restart an expired period. The 1955 possession order against Frederick and the 1962 order against Frederick and Mary are separate potential legal obstacles: establish the claim, plan, parties, issues decided and order's effect [PENDING: EV-0032]. The key unanswered question is whether the courts were asked to determine or were properly supplied with evidence of the earlier Parcel-A title/limitation case, and what propositions their orders actually resolved.

The published judgment's conditional statement that the result might have been different concerned Mary expressly rejecting the 1974 letters and maintaining her claim after receipt. It should not be attributed to a hypothetical full trial of the 1877 root title without a separate, identified source.

2.1.4 Forensic question for the present case

The issue is not whether the Court was competent to decide the appeal. It is **what title and parcel propositions were necessary to its decision, and what it merely accepted as background**. The litigation-phase task is to separate propositions actually adjudicated from historical root-of-title propositions that were assumed from the material put before the Court.

2.1.5 Evidence test

Compare pleadings, disclosure, plans, witness evidence and the trial/appeal bundle with the documents now recovered. Specifically test the 1949–1953 tenancy and parcel scope, GHF-E182's pending 1954 tenant-making attempt, the 1955/1962 proceedings, Mary's reported ancestral-title documents, WA231076/WA240304 and the 2 February 1987

amalgamation. Establish what the Court was told, what evidence was in the bundle, and whether the title change during the appeal was raised.

2.1.6 Current finding

As at 10-10-2026, the material reviewed does not establish judicial wrongdoing in relation to the proceedings reviewed. This does not conclude that every procedural or evidential issue is resolved. A later challenge can succeed only on a legally available route. The project therefore separates title/registration claims from CPR 52.30 and any fraud-based *Takhar* case.

2.1.7 Human action

Complete the proposition-by-proposition 1987 Judgment Reconstruction and obtain the complete court bundle alongside the original HMLR amalgamation file. Record the 1954 proposal, each parcel description, what evidence was before the Court, whether each proposition was ratio, necessary finding, assumption or background, and whether the 2 February 1987 title change was disclosed to or considered by the parties and Court.

Acceptance: a counsel-ready 1987 judgment/preclusion matrix exists.

2.2 Institutional appearance timeline — linked source index

Coverage rule: this is a chronological navigation map of published Wiki source pages found by searching the current site index for "Court of Appeal". Every event label links directly to the page containing the source. It avoids duplicating source narratives. It records mention/appearance, not culpability. Dates are transcribed from page titles where available; "Date not explicit in title" means the linked source must be consulted. Search indexing is a discovery aid, not proof of exhaustive external coverage. [?]

Date shown by source title	Event / source — open evidence	Record class
3. 1950–52	GHF-E123 — Family title papers removed from the farmhouse blanket box, c. 1950–52	Published Wiki evidence page
16 April 1974	GHF-E090-N03 — "'Open day' to save ancient Welsh house" (Daily Telegraph, 16 April 1974)	Published Wiki evidence page
31 October 1974	GHF-E136 — 31 October 1974 licence letters (BP Pension Trust and BP Properties)	Published Wiki evidence page
23 May 1975	GHF-E138 — 23 May 1975 BP Pension Trust to BP Properties conveyance and plan (WA240304 items 1, 12, 13)	Published Wiki evidence page
1984–87	FC-005 — Family / Solicitors' 1984–87 Litigation File	Published Wiki evidence page
10 July 1986	GHF-E140 — High Court trial of 10 July 1986: pleadings, evidence and judgment	Published Wiki evidence page
1987	GHF-E142 — 1987 House of Lords petition for leave to appeal: papers	Published Wiki evidence page
31 July 1987	GHF-E141 — 31 July 1987 Court of Appeal judgment: BP Properties Ltd v Buckler [1987] EWCA Civ 2	Published Wiki evidence page
3 December 1988	GHF-E090-N08 — "History fight to save farm" (South Wales Echo, 3 December 1988)	Published Wiki evidence page
6 December 1988	GHF-E090-N10 — "Farmer fails in final eviction hearing" (Western Mail, 6 December 1988)	Published Wiki evidence page
3. 30 April 1988	GHF-E090-N07 — "Chainsaw farmer vows to fight on" (c. 30 April 1988)	Published Wiki evidence page
3. 30 April 1988	GHF-E090-N07 — c. 30 April 1988: "Chainsaw farmer vows to fight on"	Published Wiki evidence page
3. 7 December 1988	GHF-E090-N11 — "Tears flow as 800 year-old farm house is razed at last" (c. 7 December 1988)	Published Wiki evidence page
Date not explicit in title	Evidence Library	Published Wiki evidence page
Date not explicit in title	Press Archive — Newspaper Transcripts	Published Wiki evidence page

2.2.1 Records-access register appearances — direct row links

Rows below match the institution's name or an alias in the reply register's sender/reference or recorded description. A match shows an appearance in the records trail, not necessarily an act by this institution.

No matching reply-register row was found for this name/alias set. That is not evidence that no correspondence exists; broaden the alias search when new records are added. [?]

Related navigation: FOI & Public-Authority Reply Register · Records Access Chronology · Evidence Library

2.3 Judgment-control update — 16 October 2026

The full reported judgment should be used to distinguish the court's holding from unresolved root-title issues. Dillon LJ's overriding-interest statement was conditional: if Mary had acquired a valid title, it would have bound BP's registration [EV-0080]. The judgment does not find that she had proved title, and the registration question is not, by itself, evidence of fraud by the court or the parties.

The report records that no grant of representation to Mary's estate had been obtained by the appeal date in July 1987. Check for any later grant. The judgment's appearance record names counsel instructed through Robbins Olivey & Blake Lapthorn as agents for Loosemores on the appellant side and Linklaters & Paines for BP Properties on the respondent side. These are record-tracing leads, not findings of wrongdoing. Preserve the complete trial and appeal bundle, pleadings, title plans and correspondence before assessing whether any material evidence was omitted, misdescribed or presented.

Keep the route to challenge the judgment separate from the direct title/register route. The latter remains an evidential /legal enquiry; a fraud-based judgment challenge requires proof of material fraud and causation. See GHF-E141 and the 1983 first-registration analysis.

Site-wide hypothesis: see the Cedwyn Estate Working Theory (HYPOTHESIS).

2.4 Page version & change log

Current version: 0.1.2

Version	Date (UTC)	Editor (human or agent name)	Change	Source / evidence
0.1.2	2026-10-18T15:29Z	Sion's Tab agent	Correction (18 Oct 2026): Item 9: pasted Cedwyn Estate cross-reference paragraph replaced by a one-line link; the paragraph was not about this page's subject.	Corrections log — 18 Oct 2026 (page 3919) / Master Change Log (3923)
0.1.1	2026-10-18T15:29Z	Sion's Tab agent	Footer standardised; earlier log rows carried into this table; no content change	Editing Protocol, 18 Oct 2026
0.1.0	2026-10-18T14:27:00+01:00	OpenAI-assisted maintenance agent (GPT-6)	Installed footer log; version tracking begins at 0.1.0; this does not reconstruct earlier revisions. CURRENT VERSION: 0.1.0.	Saved through WordPress API; public rendering not individually checked.

Legacy; version not recorded	2026-10-18 (rollout date; exact time not separately recorded)	OpenAI-assisted maintenance agent (GPT-6)	Installed this page-local append-only change log and agent instructions. Existing page content was not intentionally rewritten.	User-directed site-wide changelog standard. Saved via WordPress API; public rendering of this page not yet independently checked.

Agents and editors: follow the Editing Protocol.